

HOUSE BILL 1665

By Maberry

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 33; Title 47; Title 56; Title 63; Title 68 and
Title 71, relative to the protection of minors in
healthcare settings.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 47-18-104(b), is amended by adding the following as a new subdivision:

() Violating § 56-7-1022;

SECTION 2. Tennessee Code Annotated, Title 56, Chapter 7, Part 10, is amended by adding the following as a new section:

56-7-1022. Prohibition on insurance-driven questionnaires.

(a) A health insurance issuer, managed care organization, or any entity providing reimbursement for healthcare services shall not require a healthcare provider or facility to ask the prohibited questions, as described in § 63-1-1003, as a condition of payment, credentialing, quality scoring, compliance, or participation.

(b) An insurer shall not deny or reduce payment, impose penalties, or otherwise disadvantage a provider for failing to ask such questions.

(c) A violation of this section constitutes an unfair or deceptive act or practice affecting trade or commerce and is subject to the penalties and remedies provided in the Tennessee Consumer Protection Act of 1977 in addition to any other penalties and remedies.

SECTION 3. Tennessee Code Annotated, Title 63, Chapter 1, is amended by adding the following as a new part:

63-1-1001. Legislative findings.

The general assembly finds and declares that:

(1) A parent has the right to make all physical and mental healthcare decisions for the parent's minor child and consent to all physical and mental health care on the child's behalf, as described in § 63-1-176;

(2) Minors are increasingly being asked questions by healthcare providers regarding gender identity, perceived gender normalcy, or whether the minor identifies as the minor's true or right gender without parental knowledge or consent;

(3) Some healthcare providers and facilities have reported that insurance companies or third-party payors require the inclusion of such questions for data collection or reimbursement;

(4) Such questions may introduce confusion, influence minors, or conflict with the values and beliefs of families in this state; and

(5) This state has a compelling interest in ensuring that healthcare providers do not solicit sensitive information from a minor that is unrelated to legitimate medical purposes and that a parent remain fully informed.

63-1-1002. Definitions.

As used in this part:

(1) "Healthcare provider" means a healthcare professional, healthcare establishment, or healthcare facility licensed, registered, certified, or permitted pursuant to this title, title 33, or title 68 or regulated under the authority of either the department of health or an agency, board, council, or committee attached to the department of health or by the department of mental health and substance abuse services, and that is authorized to provide health or medical care or mental health services in this state;

(2) "Minor":

(A) Means a person who has not attained eighteen (18) years of age; and

(B) Does not include a person who:

(i) Is emancipated pursuant to title 29, chapter 31;

(ii) Needs emergency treatment pursuant to § 63-6-222;

(iii) Is or was previously a member of the armed forces of the United States or a member of a reserve or national guard unit; or

(iv) Is the parent of a minor child and has full custody of that minor child; and

(3) "Parent" means as biological, legal, or adoptive parent or an individual who has been granted medical decision-making authority over the child under state law.

63-1-1003. Prohibited conduct.

(a) Except as provided in subsection (b), a healthcare provider shall not ask a minor a verbal or written question on the following:

(1) Whether the minor feels normal in the minor's body;

(2) Whether the minor believes the minor is the correct gender;

(3) Whether the minor identifies as a gender different from the minor's sex; or

(4) An inquiry intended to elicit statements about gender identity, gender confusion, or gender dysphoria.

(b) A healthcare provider may ask a question listed in subsection (a) if:

(1) The parent is physically present and fully informed and gives written consent to a question listed in subsection (a); and

(2) Such question is directly related to the diagnosis or treatment of a specific medical or psychological condition currently being evaluated.

(c) A healthcare provider shall not include gender identity questions on written intake forms, electronic tablets, or questionnaires directed to a minor unless the requirements of this section are satisfied.

63-1-1004. Parental rights and notification.

(a) A parent shall have full access to all written forms, questionnaires, or electronic assessments presented to the parent's minor child in a healthcare setting.

(b) A healthcare provider shall not conduct private interviews with a minor about gender identity, sexual orientation, or any other gender-related topic unless the healthcare provider, using reasonable medical judgment, based upon the facts known to the healthcare provider at the time, performs a screening of a minor who the healthcare provider reasonably believes is a trafficked person or a victim of brutality, abuse, or neglect in order to determine whether the healthcare provider must make a report pursuant to § 37-1-403 or § 37-1-605.

63-1-1005. Enforcement and penalties.

A violation of § 63-1-1003 by a healthcare provider constitutes unprofessional conduct subject to discipline by the relevant licensing board.

63-1-1006. Construction.

This act shall not be construed to:

(1) Limit mandated reporting obligations for child abuse or neglect pursuant to § 37-1-402 or § 37-1-605;

(2) Restrict emergency medical care, as described in § 63-6-222; or

(3) Prevent a minor from voluntarily reporting concerns of abuse, exploitation, or danger to the minor's self or others.

SECTION 4. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it.